
8:30 a.m. Law and Motion

IN RE: BATES

CASE NUMBER: 26CV-0210349

Tentative Ruling on Petition for Name Change: Petitioner Stephanie Bates seeks to change her own last name, as well as her three minor children's last names, to Archer. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided.

Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). No proof of service is on file for Aaron Hille, who is identified in the Petition as a parent of two of the minors. The Petition indicates the father of one of the minors is deceased.

This matter is continued to **Monday, November 9, 2026, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date and proof of service must be filed. Proof of publication must also be filed. No appearance is necessary on today's calendar.

IN RE: CAREAGA

CASE NUMBER: 26CV-0211212

Tentative Ruling on Petition for Change of Name: Petitioner Jessica Hope Careaga seeks to change her name to Alexandria Naomi Careaga. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

CAUFIELD VS. CAPTIVE-AIRE SYSTEMS, INC., ET AL.

CASE NUMBER: 24CV-0205744

Tentative Ruling on Motion for Final Approval of Class Action and PAGA Settlement: Plaintiff Grant Caufield moves for an Order granting final approval of a proposed class action settlement between Plaintiff and Defendants Captive-Aire Systems, Inc. and Captive-Aire Systems of California Inc. The Motion is properly noticed and unopposed. This Court granted preliminary approval on March 16, 2026.

Total Settlement Amount	\$1,865,000.00
Proposed Attorneys' Fees (1/3)	-\$621,666.67
Litigation Costs and Expenses (actually incurred)	-\$23,146.27
Settlement Administration Costs (actually incurred)	-\$9,500
Proposed Class Representative Enhancement	-\$5,000
PAGA Claim Settlement Allocation	\$50,000
Payment to LWDA (75%)	(-\$37,500)
Payment to Class Members (25%)	(\$12,500)
Settlement to be Disbursed to Class Members	\$1,155,687.06

The settlement class is comprised of 426 individuals. Each Participating Class Member is eligible

to receive an average benefit of \$2,712.88 subject to employee-side tax and withholdings. There are 299 PAGA Members who will each receive an average of \$41.81 from the 25% share of the PAGA Penalties. The highest gross Individual Class Payment is estimated to be \$6,524.02, and the lowest is \$0.91.

In deciding whether a class settlement is sufficiently fair, adequate and reasonable to warrant granting final approval, the Court considers several factors, including: 1) the amount offered in settlement; 2) the strength of plaintiff's case and the risks inherent in the continued litigation; 3) the extent of discovery completed and the state of the proceedings when the settlement was reached; 4) the complexity, expense, and likely duration of the litigation in the absence of settlement; 5) the experience and views of class counsel; and 6) the reaction of class members to the proposed settlement. *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 244-45. A presumption of fairness exists where (1) settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is low. *Nordstrom Com'n. Cases* (2010) 186 Cal. App. 4th 576, 581.

The factors here weigh in favor of granting final approval. Plaintiff has complied with the terms of the Court's Order preliminarily approving of the settlement. In granting preliminary approval, the Court found that Plaintiff's assessment of the value of the class claims was sufficient for the Court to determine that the settlement amount was within the range of reasonableness. Plaintiff has shown that Class Counsel is highly experienced in wage and hour class action litigation, including settlement, and that before entering into the proposed settlement, counsel thoroughly investigated and engaged in discovery regarding the factual and legal issues in this lawsuit. Plaintiff has further demonstrated that the parties engaged in arm's length bargaining by participating in mediation before an experienced mediator. Lastly, the overall reaction of the class to the proposed settlement was positive. Out of the 429 Class Members, all were notices were deliverable. The settlement administrator did not receive any objections, and received three requests for exclusion. Plaintiff has complied with the terms of the Court's March 16, 2026 Order, and no objections have been raised. Final approval of the settlement is GRANTED.

Attorney Fees. Plaintiff is requesting attorney fees of one third of the settlement amount, or \$621,666.67 and argues that the requested fees are reasonable under the common fund doctrine and a lodestar cross-check. Under the common fund doctrine, "when a number of persons are entitled in common to a specific fund, and an action brought by a plaintiff or plaintiffs for the benefit of all results in the creation or preservation of that fund, such plaintiff or plaintiffs may be awarded attorney's fees out of the fund." *Serrano v. Priest* (1977) 20 Cal. 3d 25, 34. Under the lodestar method, a base fee amount is calculated from a compilation of time reasonably spent on the case and the reasonable hourly compensation of the attorney. This base amount is then potentially adjusted using multipliers based on various factors. *Id.* at 48.

The California Supreme Court case of *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal. 5th 480 is instructive for evaluating the reasonableness of the instant attorney fees request. *Laffitte* held that when a settlement agreement creates a non-reversionary fund, the trial court may calculate attorneys' fees as a percentage of the common fund. There, the Court affirmed an attorneys' fees award of 33.33% of a common fund and found that there are recognized advantages of the percentage method over the lodestar method, "including relative ease of calculation, alignment of incentives between counsel and the class, a better approximation of market conditions in a

contingency case, and the encouragement it provides counsel to seek an early settlement and avoid unnecessarily prolonging the litigation.” *Id.* at 503.

The trial court may cross-check a common fund attorneys’ fees award with an abbreviated lodestar calculation for the purpose of “bringing a measure of the time spent by counsel into the trial court’s reasonableness determination.” *Id.* at 505. Lodestar is calculated by multiplying reasonable attorney time spent by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal. 4th 1084, 1095. A reasonable hourly rate is based upon the prevailing rate for similar work in the pertinent geographic region. *Id.* However, the lodestar calculation is not meant to override the common fund percentage determination and does not impose an absolute maximum or minimum on the fee award. *Laffitte, supra*, 1 Cal. 5th at 504-505. Only when the multiplier calculated by lodestar cross-check is extraordinarily high or low should the Court consider adjusting the percentage to bring the multiplier within a justifiable range. *Id.* at 505.

Based on the rates suggested by Class Counsel, the lodestar is \$171,480.00, which is based on 213.3 hours of attorney time at their customary rates. The requested amount of \$621,666.67 therefore represents a multiplier of roughly 3.63. Counsel argues application of the positive multiplier is reasonable and appropriate based on the contingent risk class counsel incurred, the difficulty of questions involved, the length of litigation, substantial benefit conferred on the Class and the State of California and the skill displayed by Class Counsel. The class was notified of the proposed attorney fee and no objections were raised. The Court finds the requested attorney fees reasonable and they are awarded.

Costs and Expenses. Plaintiff seeks reimbursement for costs and expenses of \$23,146.27. The Court preliminarily approved costs up to \$25,000. The incurred and anticipated costs appear to be appropriate. The Court finds that the \$23,146.27 in costs and expenses incurred by Plaintiff’s counsel are reasonable and were necessary to the prosecution of this action.

Enhancement Award. Plaintiff requests a class representative enhancement payment of \$5,000 for Plaintiff Grant Caufield. This amount was expressly stated in the class notice. The Court considers the following factors in determining whether to award the class representative an enhancement award: (1) the risk to the class representative in commencing suit, both financial and otherwise; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation and; (5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. *In re Cellphone Fee Termination Cases* (2010) 186 Cal. App. 4th 1380, 1394–95, citing *Van Vracken v. Atlantic Richfield Co.* (1995) 901 F. Supp. 294, 299. Plaintiffs spent significant time assisting counsel in this action. Plaintiff’s efforts have resulted in a monetary benefit to the class members. There has been no objection by any member of the class to the enhancement award. The Court finds that the class representative enhancement payment is reasonable.

Settlement Administration Costs. The Court authorized Phoenix Settlement Administrators as the settlement administrator. Costs incurred were the amount approved by the Court, at \$9,500.00. Jarrod Salinas, a case manager for Phoenix, provided a declaration that details the work done by Phoenix. An itemized invoice is also attached. The costs are reasonable and are approved.

The Motion is **GRANTED**. Plaintiff submitted a Proposed Order and Judgment that will be executed. The Court will retain jurisdiction pursuant to CRC 3.769(h). Absent a request for an

alternative date, the Court intends to set the matter on **Monday, March 22, 2027, at 8:30 a.m. in Department 64** for a hearing on compliance. Prior to the hearing, Plaintiff is expected to provide evidence that the settlement checks were mailed, any uncashed monies were distributed to the California Controller's Unclaimed Property Fund, and that all fees and costs have been paid as outlined above. Evidence should be filed no later than March 15, 2027.

JANE MJ DOE VS. SABET, MD, ET AL.

CASE NUMBER: 23CV-0203865

Tentative Ruling on Motion to Enter Judgment: Plaintiff moves for entry of judgment pursuant to Code of Civil Procedure section 664.6. The parties settled this matter at the Mandatory Settlement Conference held May 4, 2026. The Settlement Agreement was executed June 4, 2026. Defendant has made a partial payment under the terms of the Agreement and has failed to timely make the remaining payment. The Motion has been properly noticed and is unopposed.

Merits: CCP § 664.6(a) provides that if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.

Here, the parties stipulated to settlement orally before the court on May 4, 2026. Thereafter, the settlement was reduced to writing and signed by the parties on June 4, 2026. The signed writing is attached as Exhibit 2 to the Declaration of Steward Altemus. As of the August 21, 2026 filing of this Motion, a partial payment has been made. Plaintiff granted a 30 day extension to the payment due date, but Defendant has not timely paid the remaining balance. Plaintiff is entitled to entry of judgment on the terms of the Settlement Agreement for the outstanding balance plus interest.

The motion is **GRANTED**. The proposed order and judgment will be executed.

LUCERO VS. ADAMS

CASE NUMBER: 26CV-0211131

Tentative Ruling on Demurrer: Defendant Daniel Adams, individually and dba Daniel Adams Construction demurs to Plaintiff Dolores Lucero's Complaint pursuant to Code of Civil Procedure section 430.10(e) on the grounds that it is barred by res judicata. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Daniel Adams establishes compliance with the meet and confer requirements.

Request for Judicial Notice: Defendant's requests that the Court take judicial notice of the following is GRANTED, Pursuant to Evidence Code 452(d).

1. Ruling dated July 10, 2024 and Notice of Entry of Judgment filed July 12, 2024 in Small Claims matter of *Lucero v. Adams*, Shasta County Superior Court Case NO. 24CL-00078.
2. Notice of Entry of Judgment – Small Claims Appeal dated August 26, 2024 in *Lucero v. Adams*.
3. Order denying Motion to Vacate Judgment dated September 17, 2024.